

		967, 992.) “Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective [citations].” (Lopez, supra, 246 Cal.App.4th at pp. 604-605.) Following an IDC, on March 3, 2026 the Court granted BMW’s motions to compel and ordered: (1) Plaintiff’s deposition must proceed no later than March 17, 2026; and (2) the Vehicle Inspection must proceed by April 6, 2026. (Triplett Decl. ¶ 18; Ex. N [ROA 75].) Sanctions were awarded against Plaintiff and to BMW NA’s counsel in the amount of \$3,560. The Court also imposed sanctions on Quill in the amount of \$300 to pay to the Clerk of the Court. The sanctions to Defendant’s counsel and to the Court have been paid. It appears that Plaintiff’s deposition has still not been taken. The vehicle inspection has not taken place and cannot take place – the vehicle was totaled sometime around the time the Court issued its discovery orders. The Court intends to impose at least monetary sanctions against Plaintiffs and/or their counsel. Counsel should be prepared to address the appropriate amount of monetary sanctions and the appropriate type of additional sanctions.
110	National Funding, Inc. vs. Integrated Holdings, Inc., 2025-01529466	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED Plaintiff National Funding, Inc., moves for summary judgment or, in the alternative, summary adjudication against Defendant Lee Kareem (Kareem or Guarantor), as to the second cause of action for breach of guaranty, the only cause of action against this defendant. No opposition has been filed. Plaintiff filed the instant Complaint against Defendants Integrated Holdings, Inc. dba D&N Gage and Kareem. Default has been entered against co-defendant, Integrated Holdings, Inc. dba D&N Gage. (ROA 17.)

		Plaintiff contends that Kareem failed to satisfy his obligations under the applicable Guaranty wherein Kareem guaranteed repayment of amounts loaned to Defendant Integrated Holdings, Inc. Code of Civil Procedure section 437c(a)(1) states, in part: “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc. § 437c(a)(1).) Code of Civil Procedure section 437c(p)(1) provides that, “[f]or the purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or defense thereto.” Plaintiff’s initial burden of proof in moving for summary judgment does not include disproving any affirmative defense asserted by a defendant. (Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554, 564.) Upon a plaintiff meeting its burden of showing there is no defense to a cause of action by proving each element of the cause of action, “the burden shifts to the defendant ‘to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.’ [Citations.]” (Id. at pp. 564-565.) “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51
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	Cal.4th 811, 821.) “A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty. [Citation.]” (Gray1 CPB, LLC v. Kolokotronis (2011) 202 Cal.App.4th 480, 486.) On or about February 26, 2025, Defendant, Integrated Holdings, Inc. dba D&N Gage (Borrower) electronically executed and delivered to Plaintiff a Business Loan Agreement, whereby Borrower received an original loan in the principal amount of \$92,158.95 from Plaintiff/Lender. (Separate Statement of Undisputed Material Facts (“SSUMF”), ¶ 1.) The Loan Agreement provided for a total loan repayment obligation of \$127,178.92 to be paid by Borrower to Plaintiff via 44 consecutive weekly payments of \$2,890.43. (SSUMF, ¶ 2.) In further consideration for the loan and to ensure repayment, Kareem agreed to guarantee the indebtedness of Borrower by executing a personal guaranty. (SSUMF, ¶ 3, 4.) On or about July 25, 2025, Borrower and Guarantor electronically executed and entered into a modification of the Loan Agreement with Plaintiff (the “Modification Agreement”), whereby Plaintiff agreed to extend the term of the loan an additional eighteen (18) months and lower the repayment schedule to \$1,064.95 weekly payments in exchange for an extension fee of \$14,307.63 that would be added to the repayment obligation of the loan. (SSUMF, ¶ 5.) On or about August 18, 2025, Borrower failed to timely make its weekly payment, as required under the terms of the Loan Agreement as modified by the Modification Agreement. (SSUMF, ¶ 6.) Specifically, Borrower’s Loan Payment History shows that Borrower failed to make the \$1,064.95 weekly payment on August 18, 2025, August 25, 2025, and September 2, 2025, such that Plaintiff was unable to collect any Automatic Payment Plan payment on three consecutive dates, triggering an “Event of Default.” (Ex. 3 to Otero Declaration, Loan
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		Payment History.) Borrower has remained continuously in default. (Otero Decl., ¶ 7.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under the Loan Agreement and declare a breach, making the entire outstanding balance of \$104,671.47 due and payable. (SSUMF, ¶ 7.) Plaintiff has demanded payment from both Borrower and Kareem/Guarantor for the amount due under the Loan Agreement and Guaranty. (SSUMF, ¶ 8.) Despite Plaintiff's demand, Borrower and Kareem/Guarantor have both failed to pay the amounts due under the Loan Agreement and Guaranty. (SSUMF, ¶ 9.) Based on the foregoing, the Court finds there exists a valid written Guaranty between Plaintiff and Guarantor for Guarantor to fulfill the obligations and duties of Borrower under the Loan Agreement, and Plaintiff has performed its obligations under the Loan Agreement. By failing to make payments when due, Borrower has defaulted under the Loan Agreement, and by failing to pay the amounts due under the Loan Agreement upon demand, Guarantor has breached the Guaranty. Plaintiff has been damaged in the outstanding loan balance in the amount of \$104,671.47. The Court GRANTS summary judgment as to the second cause of action for breach of guaranty against Defendant and Guarantor Lee Kareem. Plaintiff's counsel shall prepare and submit a proposed Order and a proposed Judgment. Plaintiff to give notice.
111	NFS Capital, LLC vs. Alva Manufacturing, Inc., 2025-01495506	APPLICATION FOR WRIT OF POSSESSION – DENIED WITHOUT PREJUDICE Plaintiff seeks a Writ of possession after hearing for "The machining equipment as defined in detail in Attachment 4." It is unclear to the Court what specific equipment is subject to the requested writ. The documents attached to attachment 4 are invoices. One appears to be for a